

26STCP01547 26STCP01547

County: los-angeles

Division: Civil Law and Motion

Department: 732

Hearing date: 2026-07-08

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Case Number: 26STCP01547 Hearing Date: July 8, 2026 Dept: 732

Jame Legge v. Mobilitas Insurance Company of Arizona.

Wednesday, July 8, 2026

CASE NUMBER: 26STCP01547

OPPOSED

Petitioner James

Legge Petition to Compel Arbitration with Mobilitas Insurance Company of Arizona

Facts: This is an underinsured motorist insurance action. Petitioner James Legge ("Petitioner") seeks to commence arbitration with Respondent Mobilitas Insurance Company of Arizona ("Respondent"). Petitioner was a driver for Lyft, Inc. injured in a collision with another at-fault motorist, causing Petitioner substantial injuries. Following a settlement with the at-fault driver, Petitioner seeks arbitration of his claim for medical and other expenses with Respondent, pursuant to their policy provided to him through Lyft. (Motion at pp. 3–4.)

Procedural History:

Petitioner filed the present petition to compel arbitration on April 17, 2026.

Petitioner filed a
motion to compel arbitration on May 1, 2026.

Respondent filed an
opposition on June 25, 2026.

Petitioner filed a
reply on June 29, 2026.

Analysis:

I.

MOTION TO
COMPEL ARBITRATION

On petition of a
party to an arbitration agreement to arbitrate a controversy, a court must
order the petitioner and respondent to arbitrate the controversy if it
determines the arbitration agreement exists, unless (1) the petitioner has
waived its right to arbitrate; (2) grounds exist for the revocation of the
agreement; or (3) “[a] party to the arbitration agreement is also a party to a
pending court action or special proceeding with a third party, arising out of
the same transaction or series of related transactions and there is a
possibility of conflicting rulings on a common issue of law or fact.” (Code
Civ. Proc., § 1281.2.)

“[T]he party moving
to compel arbitration bears the burden of establishing the existence of a
preponderance of the evidence any fact necessary to its defense. The role of
the trial court is to sit as a trier of fact, weighing any affidavits,
declarations, and other documentary evidence, together with oral testimony
received at the court's discretion, to reach a determination on the issue of
arbitrability.” (Hotels Nevada v. L.A.
Pacific Center, Inc. (2006) 144 Cal.App.4th 754, 758.)

Petitioner James

Legge (“Petitioner”) moves to compel arbitration against Respondent Mobilitas
Insurance Company of Arizona (“Respondent”) based on the mandatory arbitration
provision for uninsured motorist claims contained in Insurance Code § 11580.2, also

contained in the operative insurance policy, which states as follows:

The policy or an endorsement added thereto [to a policy] shall provide that the determination as to whether the insured shall be legally entitled to recover damages, and if so entitled, the amount thereof, shall be made by agreement between the insured and the insurer or, in the event of disagreement, by arbitration. The arbitration shall be conducted by a single neutral arbitrator.

(Ins. Code § 11580.2, subd. (f).)

Petitioner argues

that although he has resolved his claims against the other motorist, Respondent has failed to respond to its settlement offer and demands for arbitration sent on March 20, 2025, and has failed to respond to Petitioner's proposed list of arbitrators. (Motion at pp. 5–6; Yazdanpanah Decl. ¶¶ 5–13.)

Respondent in

opposition objects that the March 20, 2025 demand letter was framed only as an offer letter, and contained no mention of arbitration until page 10 of 13.

(Opposition at p. 2.) Respondent also argues that Petitioner's demands (including an additional demand made on October 28, 2025) and the present petition do not contain a declaration required by Insurance Code § 11580.2, subd. 9f):

Any demand or petition for arbitration shall

contain a declaration, under penalty of perjury, stating whether (i) the insured has a workers' compensation claim; (ii) the claim has proceeded to findings and award or settlement on all issues reasonably contemplated to be determined in that claim; and (iii) if not, what reasons amounting to good cause are grounds for the arbitration to proceed immediately.

(Ins. Code, § 11580.2, subd. (f).)

Respondent's first

objection is no basis to deny the petition. Petitioner demonstrates that it made a settlement offer in March 2025, that included an arbitration demand if the offer could not be accepted. It is no defense to this demand for Respondent to state that the demand was not listed on the first page.

The lack of a required declaration is a genuine barrier to arbitration, however. Such a declaration is required for “[a]ny demand or petition for arbitration,” including the present one. (Ins. Code § 11580.2, subd. (f).) Although Petitioner argues that the required declaration has been submitted in reply, this declaration of Petitioner is not made “under penalty of perjury,” as required by Insurance Code § 11580.2, subd. (f), and does not disclaim the existence of any worker’s compensation claim, but only states that Petitioner has no such claim arising from the collision “other than with Lyft.” (Supp. Yazdanpaneh Decl. Exh. F.) Although Petitioner notes that Respondent did not raise the absence of the declaration as an objection until shortly before it filed its opposition to the present petition (Supp. Yazdanpaneh Decl. ¶ 7), the declaration that has been provided does not comply with statute.

Accordingly, the petition is DENIED.

Superior Court of California

County of Los Angeles

Department 732

JAMES LEGGE,

Petitioner,

v.

MOBILITAS
INSURANCE COMPANY OF ARIZONA,

Respondent.

Case No.:
26STCP01547

Hearing Date: July 8, 2026

[TENTATIVE] RULING RE:

Petitioner James Legge Petition to Compel Arbitration with
Mobilias Insurance Company of Arizona

Petitioner James Legge Petition
to Compel Arbitration with Mobilias Insurance Company of Arizona is DENIED.

Petitioner to provide notice.

Dated: July 8, 2026

Hon.

Richard S. Kemalyan

Judge

of the Superior Court